

HOUSE BILL No. 1236

DIGEST OF INTRODUCED BILL

Citations Affected: IC 22-12-7-1; IC 25-0.5; IC 25-44; IC 35-52-25-67.

Synopsis: Fire prevention and suppression equipment. Establishes a business license and technician license with respect to fire suppression equipment professionals. Bestows certain powers, duties, and rulemaking authority upon the board of firefighting personnel standards and education (board). Provides that the board may take disciplinary action if certain conditions are met. Provides that certain actions with respect to the licensure of fire suppression equipment professionals are a Class B misdemeanor. Makes conforming changes.

Effective: July 1, 2026.

Judy

January 5, 2026, read first time and referred to Committee on Veterans Affairs and Public Safety.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1236

A BILL FOR AN ACT to amend the Indiana Code concerning professions and occupations.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 22-12-7-1, AS AMENDED BY P.L.238-2025,
2 SECTION 64, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 1. **(a)** This chapter applies to the commission, the
4 education board, and every officer, employee, and agent of an office or
5 division within the department whenever the person has authority to
6 administer or enforce a law under IC 22-11 through IC 22-15,
7 IC 35-47.5, or IC 36-8-10.5.

8 **(b) This chapter does not apply to the education board with**
9 **respect to IC 25-44.**

10 SECTION 2. IC 25-0.5-2-37 IS ADDED TO THE INDIANA CODE
11 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
12 1, 2026]: Sec. 37. **IC 25-1-2-2.1 applies to licenses held by fire**
13 **suppression equipment professionals.**

14 SECTION 3. IC 25-0.5-3-43 IS ADDED TO THE INDIANA CODE
15 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
16 1, 2026]: Sec. 43. **IC 25-1-2-6(b) applies to the board of firefighting**
17 **personnel standards and education with respect to IC 25-44.**



SECTION 4. IC 25-0.5-4-35 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 35. The board of firefighting personnel standards and education established by IC 22-12-3-1 is a board under IC 25-1-4 with respect to IC 25-44.**

SECTION 5. IC 25-0.5-8-39 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 39. An occupation described in IC 25-44 for which a person is licensed, certified, or registered by the board of firefighting personnel standards and education established by IC 22-12-3-1 is a regulated occupation under IC 25-1-7.**

SECTION 6. IC 25-0.5-9-38 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 38. The board of firefighting personnel standards and education established by IC 22-12-3-1 is a board under IC 25-1-8 with respect to IC 25-44.**

SECTION 7. IC 25-0.5-10-36 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 36. The board of firefighting personnel standards and education established by IC 22-12-3-1 is a board under IC 25-1-8-6 with respect to IC 25-44.**

SECTION 8. IC 25-0.5-12-16 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 16. The board of firefighting personnel standards and education established by IC 22-12-3-1 is a board under IC 25-1-11 with respect to IC 25-44.**

SECTION 9. IC 25-44 IS ADDED TO THE INDIANA CODE AS A NEW ARTICLE TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]:

ARTICLE 44. FIRE SUPPRESSION EQUIPMENT PROFESSIONALS

Chapter 1. Definitions

Sec. 1. The definitions in this chapter apply throughout this article.

Sec. 2. "Board" refers to the board of firefighting personnel standards and education established by IC 22-12-3-1.

Sec. 3. "Business license" refers to the following:

- (1) A Class A business license described in IC 25-44-3-1.**
- (2) A Class B business license described in IC 25-44-3-1.**
- (3) A Class C business license described in IC 25-44-3-1.**
- (4) A Class D business license described in IC 25-44-3-1.**

Sec. 4. "Carbon dioxide based engineered system" means a fire



1 suppression system that:

- 2 (1) requires individual calculations and design;
- 3 (2) uses components that are approved or recognized by a
- 4 nationally significant testing laboratory, as determined by the
- 5 board, for use in an engineered fire suppression system; and
- 6 (3) uses carbon dioxide as an extinguishing agent.

7 Sec. 5. "Carbon dioxide based fire extinguisher" means a
8 portable unit:

- 9 (1) designed to be used by a single person to fight a small,
- 10 localized fire; and
- 11 (2) that uses carbon dioxide as an extinguishing agent.

12 Sec. 6. "Carbon dioxide based preengineered system" means a
13 fire suppression system that:

- 14 (1) is designed and tested by a manufacturer to be a fixed
- 15 system;
- 16 (2) has predetermined:
- 17 (A) pipe sizes, lengths, and fittings; and
- 18 (B) nozzle types and numbers;
- 19 (3) is approved or recognized by a nationally significant
- 20 testing laboratory, as determined by the board, based on
- 21 actual fire tests; and
- 22 (4) uses carbon dioxide as an extinguishing agent.

23 Sec. 7. "Engineered system" means a fire suppression system
24 that:

- 25 (1) requires individual calculations and design;
- 26 (2) uses components that are approved or recognized by a
- 27 nationally significant testing laboratory, as determined by the
- 28 board, for use in an engineered fire suppression system; and
- 29 (3) does not use carbon dioxide as an extinguishing agent.

30 Sec. 8. "Fire extinguisher" means a portable unit:

- 31 (1) designed to be used by a single person to fight a small,
- 32 localized fire; and
- 33 (2) that does not use carbon dioxide as an extinguishing agent.

34 Sec. 9. "Preengineered system" means a fire suppression system
35 that:

- 36 (1) is designed and tested by a manufacturer to be a fixed
- 37 system;
- 38 (2) has predetermined:
- 39 (A) pipe sizes, lengths, and fittings; and
- 40 (B) nozzle types and numbers;
- 41 (3) is approved or recognized by a nationally significant
- 42 testing laboratory, as determined by the board, based on



actual fire tests; and

(4) does not use carbon dioxide as an extinguishing agent.

Sec. 10. "Technician license" refers to the following:

(1) A Class 1 technician license described in IC 25-44-4-1.

(2) A Class 2 technician license described in IC 25-44-4-1.

(3) A Class 3 technician license described in IC 25-44-4-1.

(4) A Class 4 technician license described in IC 25-44-4-1.

Chapter 2. Duties and Powers of the Board; Rulemaking

Sec. 1. (a) The board shall:

(1) enforce and administer this article;

(2) adopt rules under IC 4-22-2 for the administration and enforcement of this article;

(3) establish standards for the competent practice of fire suppression equipment professionals;

(4) issue, deny, suspend, and revoke licenses in accordance with this article;

(5) subject to IC 4-21.5, IC 25-1-7, and IC 25-1-11, discipline individuals who are licensed under this article for violations of this article;

(6) establish fees in accordance with IC 25-1-8; and

(7) maintain appropriate records with respect to the administration of this article.

(b) In establishing standards under subsection (a)(3), the board shall consider the relevant standards of the National Fire Protection Association. However, the standards adopted by the board may not conflict with rules adopted under IC 22-13-2-2.

Sec. 2. (a) The board shall adopt rules concerning the continuing education required for the renewal of licenses under this article.

(b) The rules must do the following:

(1) Establish procedures for approving organizations that provide continuing education.

(2) Prescribe the content, duration, and organization of continuing education courses that contribute to the general competence of license holders.

Chapter 3. Business Licensing

Sec. 1. (a) A Class A business license authorizes a person to engage in the business of:

(1) service;

(2) repair;

(3) recharging;

(4) inspection;

(5) installation; or



- 1 (6) maintenance;
- 2 with respect to fire extinguishers.
- 3 (b) A Class B business license authorizes a person to:
- 4 (1) engage in the business of:
- 5 (A) service;
- 6 (B) repair;
- 7 (C) recharging;
- 8 (D) inspection;
- 9 (E) installation;
- 10 (F) maintenance; or
- 11 (G) hydrostatic testing;
- 12 with respect to fire extinguishers; and
- 13 (2) engage in the business of recharging with respect to
- 14 carbon dioxide based fire extinguishers.
- 15 (c) A Class C business license authorizes a person to:
- 16 (1) engage in the business of:
- 17 (A) service;
- 18 (B) repair;
- 19 (C) recharging;
- 20 (D) inspection;
- 21 (E) installation;
- 22 (F) maintenance; or
- 23 (G) hydrostatic testing;
- 24 with respect to fire extinguishers and preengineered systems;
- 25 and
- 26 (2) engage in the business of recharging with respect to
- 27 carbon dioxide based fire extinguishers.
- 28 (d) A Class D business license authorizes a person to engage in
- 29 the business of:
- 30 (1) service;
- 31 (2) repair;
- 32 (3) recharging;
- 33 (4) inspection;
- 34 (5) installation;
- 35 (6) maintenance; or
- 36 (7) hydrostatic testing;
- 37 with respect to fire extinguishers, preengineered systems,
- 38 engineered systems, carbon dioxide based fire extinguishers,
- 39 carbon dioxide based preengineered systems, and carbon dioxide
- 40 based engineered systems.
- 41 Sec. 2. A person may not engage in the business of:
- 42 (1) service;



- (2) repair;
- (3) recharging;
- (4) inspection;
- (5) installation;
- (6) maintenance; or
- (7) hydrostatic testing;

with respect to fire extinguishers, preengineered systems, engineered systems, carbon dioxide based fire extinguishers, carbon dioxide based preengineered systems, or carbon dioxide based engineered systems without first obtaining the appropriate business license.

Sec. 3. A separate business license is required for each place of business where the actions described in section 2 of this chapter occur.

Sec. 4. (a) A business license only allows an individual to engage in the activities authorized by the license class.

(b) A person holding a business license must follow all applicable manufacturer's maintenance and installation instructions with respect to preengineered systems, engineered systems, carbon dioxide based preengineered systems, and carbon dioxide based engineered systems.

Sec. 5. To be issued a business license, an individual must do the following:

- (1) Furnish evidence satisfactory to the board showing that the individual:
 - (A) is at least eighteen (18) years of age;
 - (B) has:
 - (i) experience;
 - (ii) equipment; and
 - (iii) insurance;
 - commensurate with the class of business license sought;
 - (C) completed all training prescribed by the board; and
 - (D) received a passing score on an examination prescribed or approved by the board.
- (2) Submit to a national criminal history background check under IC 25-1-1.1-4 and furnish satisfactory evidence to the board that the individual has not been convicted of a crime that has a direct bearing on the individual's ability to practice competently.
- (3) Apply for the business license in the manner prescribed by the board.
- (4) Pay a fee established by the board.



1 **Sec. 6. (a) The board shall establish standards for the conversion**
 2 **of a business license to a higher or lower class.**

3 **(b) The board may convert a business license to a higher or**
 4 **lower class if the holder of the license:**

5 **(1) applies in the manner prescribed by the board;**

6 **(2) pays a fee established by the board; and**

7 **(3) meets the standards established under subsection (a).**

8 **Sec. 7. Subject to IC 25-1-2-6(e), a business license expires on a**
 9 **date established by the board and may be renewed subject to**
 10 **section 8 of this chapter.**

11 **Sec. 8. (a) An individual who applies to renew a business license**
 12 **must:**

13 **(1) furnish evidence showing successful completion of the**
 14 **continuing education requirements of this chapter; and**

15 **(2) pay the renewal fee established by the board.**

16 **(b) Subject to IC 25-1-2-6(e), if the holder of a business license**
 17 **does not renew the business license before the date established by**
 18 **the board, the business license expires without any action taken by**
 19 **the board.**

20 **(c) If a business license has been expired for not more than three**
 21 **(3) years, the business license may be reinstated by the board if the**
 22 **holder of the business license meets the requirements for**
 23 **reinstatement under IC 25-1-8-6(c).**

24 **(d) If a business license has been expired for more than three (3)**
 25 **years, the business license may be reinstated by the board if the**
 26 **holder of the business license meets the requirements for**
 27 **reinstatement under IC 25-1-8-6(d).**

28 **Sec. 9. (a) Renewal notices must be sent in accordance with**
 29 **IC 25-1-2-6(c).**

30 **(b) The renewal fee must be paid in accordance with**
 31 **IC 25-1-8-2(d).**

32 **Chapter 4. Technician Licensing**

33 **Sec. 1. (a) A Class 1 technician license authorizes an individual**
 34 **to:**

35 **(1) perform:**

36 **(A) a service;**

37 **(B) a repair;**

38 **(C) recharging;**

39 **(D) an inspection;**

40 **(E) an installation;**

41 **(F) maintenance; or**

42 **(G) hydrostatic testing;**



1 with respect to fire extinguishers; and

2 (2) perform recharging with respect to carbon dioxide based
3 fire extinguishers.

4 (b) A Class 2 technician license authorizes an individual to:

5 (1) perform:

6 (A) a service;

7 (B) a repair;

8 (C) recharging;

9 (D) an inspection;

10 (E) an installation;

11 (F) maintenance; or

12 (G) hydrostatic testing;

13 with respect to fire extinguishers and preengineered systems;
14 and

15 (2) perform recharging with respect to carbon dioxide based
16 fire extinguishers.

17 (c) A Class 3 technician license authorizes an individual to:

18 (1) perform:

19 (A) a service;

20 (B) a repair;

21 (C) recharging;

22 (D) an inspection;

23 (E) an installation;

24 (F) maintenance; or

25 (G) hydrostatic testing;

26 with respect to fire extinguishers, preengineered systems, and
27 engineered systems; and

28 (2) perform recharging with respect to carbon dioxide based
29 fire extinguishers.

30 (d) A Class 4 technician license authorizes an individual to
31 perform:

32 (1) a service;

33 (2) a repair;

34 (3) recharging;

35 (4) an inspection;

36 (5) an installation;

37 (6) maintenance; or

38 (7) hydrostatic testing;

39 with respect to fire extinguishers, preengineered systems,
40 engineered systems, dioxide based fire extinguishers, carbon
41 dioxide based preengineered systems, and carbon dioxide based
42 engineered systems.



Sec. 2. A person may not perform:

- (1) a service;
- (2) a repair;
- (3) recharging;
- (4) an inspection;
- (5) an installation;
- (6) maintenance; or
- (7) hydrostatic testing;

with respect to fire extinguishers, preengineered systems, engineered systems, carbon dioxide based fire extinguishers, carbon dioxide based preengineered systems, or carbon dioxide based engineered systems without first obtaining the appropriate technician license.

Sec. 3. (a) A technician license only allows an individual to engage in the activities authorized by the license class.

(b) An individual holding a technician license must follow all applicable manufacturer's maintenance and installation instructions with respect to preengineered systems, engineered systems, carbon dioxide based preengineered systems, and carbon dioxide based engineered systems.

Sec. 4. To be issued a technician license, an individual must do the following:

- (1) Furnish evidence satisfactory to the board showing that the individual:
 - (A) is at least eighteen (18) years of age;
 - (B) completed all training prescribed by the board; and
 - (C) received a passing score on an examination prescribed or approved by the board.
- (2) Submit to a national criminal history background check under IC 25-1-1.1-4 and furnish satisfactory evidence to the board that the individual has not been convicted of a crime that has a direct bearing on the individual's ability to practice competently.
- (3) Apply for the technician license in the manner prescribed by the board.
- (4) Pay a fee established by the board.

Sec. 5. Subject to IC 25-1-2-6(e), a technician license expires on a date established by the board and may be renewed subject to section 6 of this chapter.

Sec. 6. (a) An individual who applies to renew a technician license must:

- (1) receive a passing score on a renewal examination



prescribed or approved by the board; and

(2) pay the renewal fee established by the board.

(b) Subject to IC 25-1-2-6(e), if the holder of a technician license does not renew the technician license before the date established by the board, the technician license expires without any action taken by the board.

(c) If a technician license has been expired for not more than three (3) years, the technician license may be reinstated by the board if the holder of the technician license meets the requirements for reinstatement under IC 25-1-8-6(c).

(d) If a technician license has been expired for more than three (3) years, the technician license may be reinstated by the board if the holder of the technician license meets the requirements for reinstatement under IC 25-1-8-6(d).

Sec. 7. (a) Renewal notices must be sent in accordance with IC 25-1-2-6(c).

(b) The renewal fee must be paid in accordance with IC 25-1-8-2(d).

Chapter 5. Disciplinary Proceedings; Enforcement

Sec. 1. The board may take disciplinary action against a licensee for any of the following violations:

(1) Violating this article or rules adopted by the board under this article.

(2) Making a false or materially misleading representation:

(A) in a license application form or renewal form; or

(B) in information provided to the board.

(3) Failing to pay fees or fines required under this article.

(4) Communicating to the public false or misleading information concerning the license held.

(5) Failing to complete the continuing education requirements established by the board.

Sec. 2. The board's conduct of disciplinary hearings is governed by the procedures set forth in IC 4-21.5.

Sec. 3. The board may summarily suspend a license for up to ninety (90) days before a final adjudication or during an appeal of the board's determination if the board finds that the licensee represents a clear and immediate danger to the public's health, safety, or property if the licensee is allowed to engage in the actions permitted by the license held. The summary suspension may be renewed, upon a hearing before the board, for up to ninety (90) days.

Sec. 4. (a) When the board determines that an individual not



1 licensed under this article is engaged in or believed to be engaged
 2 in activities for which a license is required under this article, the
 3 board may issue an order to that individual requiring the
 4 individual to show cause why the individual should not be ordered
 5 to cease and desist from such activities. The show cause order must
 6 set forth a time and place for a hearing at which the affected
 7 individual may appear and show cause as to why the individual
 8 should not be subject to licensing under this article.

9 (b) If the board, after a hearing, determines that the activities
 10 in which the individual is engaged are subject to licensing under
 11 this article, the board may issue a cease and desist order that
 12 describes the individual and the activities that are the subjects of
 13 the order.

14 (c) A cease and desist order issued under this section is
 15 enforceable in the circuit or superior courts.

16 **Sec. 5. An individual who:**

17 (1) engages in or offers to engage in activities that require a
 18 license under this article and is not licensed or exempt from
 19 licensing;

20 (2) presents as the individual's own the license of another;

21 (3) intentionally gives false or materially misleading
 22 information of any kind to the board or to a board member in
 23 connection with licensing matters;

24 (4) impersonates another licensee; or

25 (5) uses an expired, suspended, or revoked license;

26 commits a Class B misdemeanor.

27 **Sec. 6. The following are entitled to judicial review under**
 28 **IC 4-21.5:**

29 (1) An individual who applies for and is denied a license.

30 (2) A licensee who is aggrieved by an order or a determination
 31 of the board.

32 **Sec. 7. The attorney general shall act as the legal adviser for the**
 33 **board and provide any legal assistance necessary to carry out this**
 34 **article.**

35 SECTION 10. IC 35-52-25-67 IS ADDED TO THE INDIANA
 36 CODE AS A NEW SECTION TO READ AS FOLLOWS
 37 [EFFECTIVE JULY 1, 2026]: Sec. 67. IC 25-44-5-5 defines a crime
 38 concerning fire suppression equipment professionals.

